

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, the Defendant admits all of the allegations in the Complaint and makes no request for leave to amend the Answer.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted. Judgment is awarded in the amount of \$7,619.46.

Costs are awarded in the amount of \$358.61.

Plaintiff will file the Order as well the Judgment, and serve notice of both on the Defendant.

**9. 9:00 AM CASE NUMBER: L25-08228
CASE NAME: WELLS FARGO BANK, N.A. VS. JOSE SUCHITE**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Background

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via a mail address provided by the Defendant in the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence

but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of Tanner Smith, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Smith declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. However, only the statements about Mr. Smith's knowledge of the business practices of Plaintiff are admissible.

Any statements reflecting Mr. Smith's knowledge of any account details that are not also apparent in the accompanying records are not admissible. The example of this would be Mr. Smith's statement that a copy of the Cardholder Agreement was, in fact, sent to Defendant. This fact is not reflected in any of the records. And it is unclear how Mr. Smith obtained this knowledge without observing some detail in a record that was not provided, the testimony of which would be hearsay.

There is nothing in the Declaration suggesting that mailing a Cardholder Agreement would have occurred because it is the custom and practice of Wells Fargo to do so.

While it is apparent Defendant incurred charges on a credit card, made some payments against these charges, and never objected to the statement of charges, it is unclear that he ever agreed to

anything.

Thus, this court finds that Plaintiff has not met its burden to prove the existence of a contract.

Disposition

Plaintiff's Motion is denied.

Court to issue Order.

**10. 9:00 AM CASE NUMBER: L25-14731
CASE NAME: SANDIPAN MUKHERJEE VS. FIND MY PROFESSION, INC.
FOR ORDER PERMITTING SERVICE BY ELECTRONIC MAIL AND MAIL
FILED BY: MUKHERJEE, SANDIPAN**

TENTATIVE RULING:

Plaintiff has filed a Motion and Declaration for alternative service of summons and complaint. Plaintiff requests permission to serve Defendant via email, followed by a mailing.

Plaintiff's Motion and Declaration reflect he has made several unsuccessful attempts to personally serve the agent of the Defendant corporation at an address published by the Colorado Secretary of State. Plaintiff also declares that this agent has communicated with Plaintiff using several different email addresses.

This court finds that Plaintiff has exercised reasonable diligence to effect service, and that electronic service coupled with mail service is a method that is reasonably calculated to give actual notice to the Defendant.

Disposition

Plaintiff's Motion is granted.

**11. 9:00 AM CASE NUMBER: L26-01239
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KEVIN RICHMOND
TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.